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Request for Information: Development of an Artificial Intelligence Action Plan

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Comment on FR Doc # 2025-02305

Submitter Information

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General Comment

March 14, 2025

From:

Leigh Ellison

Illustrator & Cafeteria Attendant

Lorain, OH

Re: National Science Foundation's Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

I am an everyday American who illustrates for a small niche customer base, and have done so for 15 years. I have worked hard for all my life to hone the skills and knowledge to build my business, and have been lucky enough to receive enough money from my illustrations that they have helped me afford to make ends meet.

The AI systems such as OpenAI and Google threaten to destroy thousands of American small businesses like mine with their recent demand to create special carve-outs in copyright law.

AI systems can only be produced by first training on work made by people. My unique work, and the work of hundreds of thousands of other everyday American creators was taken and fed into these AI systems without our consent, knowledge, or any compensation. They ingest our work, reassemble it, and then sell it back to unknowing or uncaring consumers – directly competing with us and cutting us out of the marketplace.

Now these big tech companies are asking this administration to create exceptions and loopholes to make this practice of stealing American creators' copyrighted work legal precedent. They are suggesting that if a machine ingests and reproduces copyrighted work, it is somehow suddenly "fair use". This disregards the reality that the machines would do nothing without data to train on, and the dataset would be greatly limited if they were to only use work they have permission to use and have to pay royalties on. These AI tools would cease to function if their abuse and exploitation of creators was deemed a violation of copyright.

They seem to believe that anything and everything on the internet – regardless of who owns it – should be theirs for the taking. They claim that if this administration does not allow them to rewrite the law in this way, it will stifle American innovation.

Instead, it will have the opposite effect. The purpose of American copyright law is to protect the incentive to create and innovate.

If we the American people do not own our creations, and everything we put online will be stolen by big tech giants, what will be the incentive to create? Many of us create simply because we like it, but to allow free exploitation of our passion, it creates a harmful environment for creativity. Creatives will fear posting their works publicly because they will be stolen unjustly because of the complete disregard for the fairness of AI data scraping. If everyday Americans create a new innovative piece of computer code, a new visual design, or a new piece of music only to have it immediately stolen by Google and Microsoft, why bother creating it in the first place? How

will we possibly make a living doing these things? All of this theft in the name of technological advancement to pay as few humans as possible. Disgusting and immoral.

Want to protect American innovation? Protect American creators. Do not create new copyright exemptions that allow big tech companies to exploit and steal from creators and everyday Americans without permission, compensation, or transparency.

This administration's AI Action Plan should focus not on giving away creator content to Big Tech companies, but rather on ensuring a fair marketplace with competition:

First, the government should ensure that creators and everyday Americans give effective consent, so that we can decide when and where our work is used by AI systems. Furthermore, that all websites are disallowed to automatically enroll users in any AI training datasets. Permission must be given explicitly, and ease of omitting works should be paramount.

Second, the AI Action Plan should encourage a robust licensing marketplace, so that the incentive to create for small businesses is preserved. Our work has immense economic value, so the value generated by that work should accrue to the original creators, not just big tech. Everyone who allows their work as data training deserves a continual cut of any and all proceeds generated using their creations.

Finally, the AI Action Plan should require transparency from big tech companies, requiring them to disclose what material is in their training datasets, and label what content is AI generated. Each component of the dataset should be paid out plainly with credits and links that redirect to any given artists' work.

I am not anti-technology or anti-AI. I am consistently impressed by the capabilities of these AI systems, and find them incredibly useful for many things. But we should not sacrifice the hard work of hundreds of thousands of Americans and give it away to big tech by rewriting copyright law.

Thank you for the opportunity to comment on these important issues.